TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JULY 31, 2023
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Elliott Barrow, Molly Hall, Julian Hopkins.
Absent: Giles Branch, Aaron Butner (both excused), Megan Stevens.
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Hopkins moved for approval of the agenda. Mr. Barrow seconded the motion. All in favor.

B. Approval of Minutes

Mr. Hopkins moved for approval of the minutes. Mr. Barrow seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-29-23, 661 Fox Pond, TMS #532-10-00-321. Request for relief from the strict application of §156.226(A) to waive the required mitigation for the removal of a 35' elm tree.**

Mr. Swalhah reviewed staff comments with the Board.

- Ms. Sally Redden, homeowner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Ms. Hall moved for denial based on the findings that the criteria has not been met as there are other properties in the vicinity with the same issue. Mr. Hopkins seconded the motion. All in favor.*

2. **Case V-30-23, 2259 Primus Road, TMS# 577-05-00-185. Request for relief from the strict application of the Primus Track Planned Development ordinance to allow a 9-foot encroachment into the rear setback. The ordinance requires a 20-foot setback along the rear property line for this parcel.**

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Anne Olsen (Susan), owner, reviewed the request with the Board.

There being no comments, Mr. Wood moved to Board questions.

- There being no further comments, Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that the criteria have not been met as the owner was aware that no further building would be allowed to the rear of the property; there are no extraordinary or exceptional circumstances; and the property is not prohibited from use. Ms. Hall seconded the motion. Motion passed on a 3 to 1 vote with Mr. Barrow, Ms. Hall, and Mr. Wood in favor; Mr. Hopkins opposed.*

3. **Case V-31-23, 207 Klink Lane, TMS #532-01-00-148. Request for relief from the strict application of §156.303(Table) to allow a 3-foot encroachment into each side setback. The ordinance requires a 10-foot setback along each side property line for this parcel.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Fabio and Ms. Shauntay Brocca, owners, reviewed the request with the Board.

- Ms. Rachel Urso, 1666 Marsh Harbor Lane, realtor, stated that this is a small, narrow lot. She stated that the previous home was dilapidated and need to be demolished. She agreed that the proposed home would be an enhancement to the neighborhood.

- Mr. Wood closed public comment.

- *Ms. Hall moved for approval based on the findings that the criteria has been met due to the size of the lot, it is a unique lot for the neighborhood, if not approved they would not be able to build a reasonably sized home for a family of four, and it would not be a detriment to the neighborhood. Mr. Hopkins seconded the motion. Motion passed on a 3 to 1 vote with Mr. Barrow, Mr. Hopkins, and Ms. Hall in favor; Mr. Wood opposed.*

4. Case V-32-23, 1007 Casseque Province, TMS #557-13-00-005. Request for relief from the strict application of §156.111(A)(5) to allow an accessory structure height of 17-feet 10 ½-inches for a pool house. The ordinance limits the height of the accessory structure to 15-feet.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Ryan Broadwater, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comments.

- *Ms. Hall moved for denial based on the findings that it does not meet the criteria as the use of the property is not restricted. Mr. Barrow seconded the motion. Motion passed on a 3 to 1 vote with Mr. Barrow, Ms. Hall, and Mr. Wood in favor; Mr. Hopkins opposed.*

5. **Case V-33-23, 302 Bank Street, TMS #532-05-00-203. Request for relief from the strict application of 156.313(F)(3)(d) to allow 6.1% of the building area ratio to be comprised of porches. The ordinance requires 10% of the building area ratio to be comprised of porches.**

- Mr. Swalhah reviewed staff comments with the Board.
- Mr. Darrell Cobb, architect, reviewed the request with the Board.
- There being no comments, Mr. Wood continued to Board questions.
- Mr. Wood closed public comment.
- *Mr. Barrow moved for denial based on the findings that it does not meet the criteria in that the use of the property would not be unreasonably restricted, there are no extraordinary or exceptional conditions for this property and no evidence that the conditions do not apply to other adjacent property. Mr. Hopkins seconded the motion. All in favor.*

H. Approval of Final Orders

- The Board signed final orders.

There being no further business, the meeting adjourned at 7:18 pm.

Submitted by,
L. Lynes
BOZA07312023